

Simplex Concrete Piles v. Union of India (2010)

Public Policy Limits on Damage Exclusion Clauses

Advocate Manisha Gandhi | Co-Founder, Law Glimpse - Academic Study Series

Citation & Forum: 2010 SCC OnLine Del 821 | Delhi High Court

Core Legal Principle: Core Ratio: Clauses completely barring contractor claims for delays caused by the employer violate S
A party cannot contract out of its liability for breach of contract by relying on one-sided clauses.

Key Precedent Note: Cornerstone precedent in Indian construction and government commercial contracts.